

File No.: EXP202210168

RESOLUTION OF SANCTION PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. and B.B.B. (hereinafter, the claiming parties) filed a complaint on September 14 and 20, 2022, with the Spanish Agency for Data Protection. The complaint is directed against those identified as C.C.C. with NIF ***NIF.1, D.D.D. with DNI ***NIF.2, and E.E.E. with DNI ***NIF.3 (hereinafter, the claimed parties). The reasons for the complaint are as follows:

“is responsible for surveillance cameras installed on the facade of their residence, facing the public road, without prior administrative authorization for this, indicating that recordings from said system have been disseminated on social networks”—page no. 1—.

They provide images of the location of the cameras and an alleged video from said system (Annex I) where public space adjacent to the residence where the devices are located is observed.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the claimed party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 06/10/22 as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter, nor to the subsequent one sent on 02/12/22, nor has any clarification been made regarding the facts presented.

THIRD: On December 14, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claiming party was admitted for processing.

FOURTH: On May 31, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the claimed party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

C/ Jorge Juan, 6

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FIFTH: On July 7, 2023, a request for collaboration was made to the Local Police (Almería) to verify the presence of improperly oriented recording devices at the scene.

This was notified by postal means to the police dependencies on July 12, 2023, as certified by the Official Postal Service.

SEVENTH: Upon consulting the database of this agency on August 28, 2023, no report has been received nor has any clarification been made regarding the facts subject to the complaint.

EIGHTH: On December 13, 2023, a was issued in which the filing of the proceedings is proposed, given that the facts could not be clarified, nor the responsible party for the installation, if applicable. From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated September 14 and 20, 2022, through which the following is conveyed:

“is responsible for surveillance cameras installed on the facade of their residence, facing the public road, without prior administrative authorization for this, indicating that recordings from said system have been disseminated on social networks”—page no. 1—.

Second. It is established that the main responsible party is C.C.C. with NIF ***NIF.1, D.D.D. with DNI ***NIF.2, and E.E.E. with DNI ***NIF.3, although the responsible party for the installation of the cameras could not be determined.

Third. The presence of several surveillance cameras is established, although the operability of the same or the illegal processing of third-party data could not be proven.

Fourth. It could not be determined that any image has been subject to unlawful processing, such as dissemination through social networks.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), it is competent to

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3/6

to initiate and resolve this procedure, the Director of the Spanish Agency for Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, transposing European Union directives regarding the accessibility of certain products and services, the migration of highly qualified persons, taxation, and the digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to this procedure.

"The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it shall lapse and, consequently, the file of actions shall be archived."

II

Article 57 of Law 39/2015, of October 1, on Common Administrative Procedure of Public Administrations, allows for the accumulation of claims to be agreed upon ex officio when they have substantial identity and intimate connection.

In this case, there is substantial identity between the claims presented due to the identity of interested parties, the claim exercised as the cameras are installed in the same dwelling, and the reasons alleged as the basis for them, so it is appropriate to resolve both claims in an accumulated manner.

III

In this case, we proceed to examine the claim(s) mentioned, through which the "presence of cameras on the exterior facade" is reported, which may be affecting public space according to the documentation provided without justified cause.

Initially, the content of Article 5.1 letter c) of the GDPR is considered affected, which states: "Personal data shall be:

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

It should be noted that individuals are responsible for ensuring that the systems installed comply with

current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must include the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

The installed cameras must be directed towards the private property, avoiding intimidation of nearby homes and/or public space with such devices.

Under no circumstances may the cameras record images of public roads or neighboring homes (except for access to the property), as this would fall under the jurisdiction of the State Security Forces and Corps, in accordance with the current LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

The installed cameras must be appropriate for the intended purpose, that is, protection of the main access to the residential area, avoiding affecting the privacy of neighbors or nearby homes that are impacted by the recording of images.

IV

In order to clarify the facts subject to transfer to this agency, the Local Police (Almería) was requested to provide their cooperation to verify the presence of these cameras at the scene, as well as any other noteworthy aspects in the judgment of the acting authority.

For reasons unknown, no record or report has been provided regarding the described facts, which could serve as a basis for this agency to support an initial accusation or the subsequent corresponding administrative sanction.

It has not been possible to verify that the cameras subject to the complaint are currently operational, proceeding to process data of third parties without justified cause, making it impossible to specify the culpability of the person responsible for their installation.

Although the contradiction in the administrative sanctioning procedure does not have the same scope as in judicial proceedings, it is true that in the hearing phase, the observations and contributions (if any) of the alleged accused can and should be contrasted, or at least there should be the necessary objective evidence to support an infringement in the matter at hand.

The principle of presumption of innocence prevents attributing an administrative infringement when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer. Applying the principle "in dubio pro reo" in case of doubt regarding

a

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5/6

a specific and determined fact, which in any case obliges to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must prevail without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the evidence and a contradictory procedure in which one's own positions can be defended. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal ruling.

The presumption of innocence prevails without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence and a contradictory procedure in which one's own positions can be defended.

It is a reiterated doctrine of the TC (e.g., Judgment No. 76/1990, of April 26) that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must

result in an acquittal ruling. Article 24.2 CE rejects both presumed and objective responsibility as well as the reversal of the burden of proof concerning the factual basis of the sanction. According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

V

In accordance with the above, no additional information has been obtained that allows for the verification of the operability of the cameras towards public space or that affects the private area of third parties, therefore it is agreed to archive the present proceedings.

It is recommended to direct the complaint, in case the facts persist, to the competent police authorities of the locality (e.g., Local Police or Civil Guard in their case), who are knowledgeable about how to act in described cases, and may refer the duly formalized proceedings with identification of the alleged responsible party(ies) to this body for a new examination of the same.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been accredited, the Director of the Spanish Agency for Data Protection RESOLVES:

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6/6

FIRST: TO ORDER the ARCHIVING of the present procedure as it has not been possible to establish that the facts presented constitute an administrative infraction in the matter within the competence of this Agency.

SECOND: TO NOTIFY this resolution to C.C.C., D.D.D., and E.E.E.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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